

Cropping the Picture: The Classic Rabbinic Borders on Tattooing¹

Introduction:

In the wake of the Roman conquest of Jerusalem in 70 C.E., ancient Israelite culture had to reinvent itself as Judaism. With the Temple in ruins and the priesthood in shambles, the Jewish people were in need of a new source of governance, a gravitational force that could continue to hold the people together. The classic rabbinic sages ensured some degree of cultural continuity by weaving the two strands of Torah, the Written Law (*Torah Shebichtav*) and the Oral Torah (*Torah Sheba'al Peh*), together to form *halachah* (Jewish law).² The ambitious task took centuries (ca. 70-1700 C.E.). Eventually, though, *halachah* provided the borders of Jewish existence, supplying this and future generations guidelines for how to engage in a multitude of real world issues.³

The Bible, however, provided no clear or definitive picture on the real-world issue of tattooing. As we recall from the previous chapter of the thesis, some Biblical passages suggested that the practice of tattooing was prevalent among ancient Israelites, affirming their use as marks of Divine punishment or protection as well as allegiance. Another passage of the Bible forbade their use, as Leviticus 19:28 stated explicitly: “You shall not make incised marks [tattoos] on yourself: I am the LORD.” By way of the Levitical

1. The writing of this chapter could not have been possible without the mentorship of Dr. Mark Washofsky, Ph.D., the Solomon B. Freehof Professor of Jewish Law and Practice.

2. While we today determine these rabbis, as well as their writing, to be authoritative, it is uncertain to what degree, particularly at the start of the period, the “rabbinic group” spoke for all of Judaism. For example, Strack and Stemberger write, “The sources for a description of the rabbinic period are so biased that the historical picture gained from them remains largely insecure - thus e.g. the notion of a normative Judaism derives from these sources.” [H. L. Strack and G. Stemberger, *Introduction to the Talmud and Midrash*. (Edinburgh, Scotland: T & T Clark, 1991) p. 6]

3. This material is summarized from Strack, *Introduction to the Talmud*, pp. 2-8

prohibition contained within the Written Law, the sages of Judaism would continue to engage the topic of tattooing into the classical, medieval, and pre-modern periods. Through a process of exegesis, these sages of Judaism elucidated the ambiguous Biblical presentation of tattooing, building, refining, and reflecting the circumstances of the practice within the developing literature of the later rabbinic periods.

What kept the rabbis engaged in this topic over these many centuries were *machlohot*, rabbinic disputes, regarding four very practical aspects of tattooing and their bearing on the issue of culpability.⁴ Particularly, the sages debated which part of the practice of tattooing caused the violation of the Biblical prohibition against *ketovet ka'aka*. Was it the *presence* of the mark; the *content* of the mark; the deliberate act in making the mark, i.e. the *intent* to create a tattoo; or the *purpose* the mark was intended to fulfill, whether medicinal, proprietary, or idolatrous.

Through the *Mishnah* and the *Tosefta*, these four aspects already emerge. This chapter, therefore, intends to follow the rabbinic sages' development of presence, content, intent, and purpose of the tattoo mark as they relate to culpability. Because each sage builds upon the knowledge and explications of the sages who came before, each literary piece – from the *Mishnah* to the *Shulchan Aruch* – is presented individually and chronologically. Had this chapter attempted to present the material of this expansive period as one unified presentation, it would have been a gross-simplification of the developing and diverse positions of the classic rabbinic authorities. Thus, they are presented both individually

4. "Culpability," according to Princeton University's on-line dictionary means "a state of guilt." [wordnet.princeton.edu] Although, it is worth noting that there are "degrees of responsibility." [www.accureport.com/resources] This is an important point, because it will be argued by some authorities that any mark is worthy of culpability. Others, however, contest that content, intention and/or purpose need to be considered when determining punishment - a higher degree of culpability.

and chronologically in order that the reader may develop the picture of the Jewish engagement with tattooing as the rabbinic authorities of this period did – one stage and one sage at a time.

Furthermore, each section includes the original Hebrew text for quick reference and even refutation of my analysis, should the reader be so inclined. Similar to the method of the classic rabbinic sages, we grow in understanding and as a people not through blind compliance, but through a healthy and intellectual debate over the material. Let us grow together in knowledge as this chapter reveals the classic rabbinic borders on the practice of tattooing.

Mishnah:

The first major work of *halachah* in the classic rabbinic period was the *Mishnah*. The basis of its legal content was extracted from the Torah as well as the oral traditions championed by the Pharisees of the Second Temple period.⁵ Although certain teachings contained within this work can be dated earlier, it is believed that the *Mishnah* was finally redacted around the year 200 C.E. by Yehudah haNasi (Judah the Prince).⁶ Since the *Mishnah* is the foundation for all subsequent codes of religious and legal norms for the Jewish community, we begin with its discussion of tattooing in tractate *Makkot* 3:6.

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5. It should be noted, that although the Torah is one basis upon which the *Mishnah* is written, its composition style does not necessarily make connections or references to specific Scripture verses. This is what separates this brand of literature as unique from rabbinic *midrashim*. [Menachem Elon. *Jewish Law: History, Sources, Principles*, Vol III. (Philadelphia: Jewish Publications Society, 1994) p.1049]
 6. "In particular, Mishnah designates the entire religious law formulated until c. 200... The *Mishnah par excellence* is the collection attributed to R. Yehudah ha-Nasi." [Strack, *Introduction to the Talmud*, pp. 2-8]

הכתוב כתובת קעקע, כתב ולא קעקע ולא כתב, אינו חייב עד שיכתוב ויקעקע בדיו ובכתול ובכל דבר שהוא רושם. רבי שמעון בן יהודה משום רבי שמעון אומר, אינו חייב עד שיכתוב שם השם, שנאמר (ויקרא יט) וכתובת קעקע לא תתנו בכם אני ה' :

If one writes a *ketovet ka'aka*, [one is culpable]. If he wrote but did not incise [it into the skin], or incised [into the skin] but did not write, he is not culpable until he writes and incises [into the skin whether] with [black] ink, blue dye, or anything that leaves a mark.

Rabbi Shimon ben Yehudah, in the name of Rabbi Shimon, says: "One is not culpable unless he writes [and incises] there the Name [of God]. For it is written: 'You shall not incise writing on yourselves: I am the LORD,' (Lev 19:28)." [Rendering the Biblical verse: "You shall not incise writing on yourselves of 'I am the Lord.'"]

The *Mishnah* begins the process of defining the Jewish parameters of tattooing by reiterating the Biblical prohibition: one is culpable for writing a *ketovet ka'aka*. In other words, according to the anonymous authoritative voice of the *Mishnah*, just the *presence* of the mark is enough to have violated the prohibition.⁷ Yet the same problem, present at the end of the previous chapter of the thesis, persists in interpreting the *Mishnah*. What exactly is a "*ketovet ka'aka*?"

Ketovet ka'aka was considered by the earliest rabbinic sages as a corporal sign of some form, identified as such by the word רושם, meaning a "trace" or "mark."⁸ According to

7. The anonymous authoritative voice of the *Mishnah* is also referred to as the *tanna kamma* or the *stam mishnah*. Because there is no name attributed, many rabbinic scholars assume the voice to be that of the redactor's, Yehudah haNasi. However, there is another opinion that ascribes the anonymous teachings to Rabbi Meir, upon who's earlier *Mishnah* Rabbi Yehudah supposedly relied. According to tradition, Rabbi Meir's *Mishnah* was based upon the teachings of his teacher Rabbi Akiva. "Yet even Akiva was not the *Mishnah*'s first redactor, but resorted to a 'first Mishnah' whose roots go back to biblical times." [Strack, *Introduction to the Talmud*, pp. 124-125]

8. Marcus, Jastrow. *A Dictionary of the Targum, The Talmud Babli and Yerushalmi, and the Midrashic Literature*. (Jerusalem: Hotzeit Chorev) p. 1464

the text, the mark could be made “with black ink, blue dye, or anything that leaves a mark.” The specific materials mentioned may reflect the colors used at that time to ensure that a mark appeared on the skin. It is not apparent, however, how long the mark would need to last in order to be considered a tattoo. Neither in the *Mishnah* nor in many of the later texts of this period is there a discussion as to the details of this stipulation.⁹ Nevertheless, it is understood that to make the mark of *ketovet ka’aka*, and thus be culpable for creating a tattoo and violating the prohibition, one must commit two acts: “כתב” (*katav*) and “קעקע” (*k’aka*). While the root “כתב” indisputably meant “to write,” how did the rabbis understand “קעקע” to mean “incise?”

It is not just a mark, but we know from the Greek translation of the Bible that *ketovet ka’aka* was an incised mark. By the time Yehudah haNasi redacted the *Mishnah*, the term *ka’aka* was widely understood by both the insular rabbinic community and the community at large to mean “incised writing,” or more specifically, “tattoo.” The assumed prevalence of this understanding cannot be attributed to a common Semitic cognate.¹⁰ Rather, the basis for my interpretation comes from the earliest translation of the Hebrew Bible, known as the Septuagint. In the third century B.C.E., the Torah was translated into Greek. In the Greek translation, “קעקע” is rendered “στίκτός” (*stiktos*),

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9. It will remain ambiguous throughout the classic rabbinic period how long the mark must last. RaSHI writing in the 11 century, states in his commentary to BT *Makkot* 21a, it must “appear every day.” And, in his commentary on BT *Gittin* 20b he becomes more direct, stating: “It cannot ever be erased.” On the other hand, the *Nimukei Yosef*, who writes in the 14th century, simply states it must be “marked there for a זמן גדול - long time.” Multiple positions are maintained without a definitive ruling, because the issue of permanence shrinks in importance in comparison to the other contenders for culpability: the mark, the content, the intent, or the purpose. It will only emerge as a critical factor in the discussion of tattooing in the modern period by the rabbinic sages of Orthodox and Conservative Judaism.
 10. As was already pointed out in chapter one, there are no known occurrences of anything similar to קעקע from the remnant texts of the ancient Near East.

which meant “pricked” or “tattooed.”¹¹ The word *stiktos* also shares the same verb stem with the Greek word στίγμα (*stigma*). As was brought to light in chapter two, *stigma* was a permanent mark on the skin, almost exclusively in the form of a tattoo, within both Greek and Roman societies. Therefore, while the Semitic origins may be unknown, the term *ka’aka* was widely understood as a tattoo before, during, and after the final redaction of the *Mishnah*.

Another opinion regarding culpability correlates the violation of the prohibition of *ketovet ka’aka* with *content* rather than simply the *presence* of the mark. According to Rabbi Shimon, culpability does not come into effect “unless he writes [and incises] there the Name [of God].” One could interpret Rabbi Shimon’s statement as a further restriction to the definition of the tattoo. In other words, according to Rabbi Shimon, a *ketovet ka’aka* is not merely “incised writing,” but *only* the incised writing of the Name of God. The more likely implication of Rabbi Shimon’s statement, however, is that one is prohibited from writing and incising any mark, as presented in the position of the *tanna kamma*. But, one is not culpable until one tattoos the specific content of the Name of God.

Why reserve culpability only for tattooing God’s Name? As was brought to light in the previous chapter, cultures of the ancient Near East often employed the tattoo within the cultic sphere, permanently marking the name or symbol of a deity onto a mortal being in order to symbolically inoculate the individual with a deity’s presence or power. The

11. Henry George Liddell and Robert Scott. *A Greek-English Lexicon*. (Oxford: Clarendon Press, 1996) p. 1645. They also list the appearance of “στίκτης,” a “tattooer” and note that this term also appears in the writings of Herodotus, Histories 5.65. Liddell and Scott are supported in their definition by T. Muraoka. *A Greek-English Lexicon of the Septuagint*. (Louvain, Paris and Dudley, MA: Peeters, 2002) p. 924, who writes that στίκτός are “tattoo marks.”

tattoo was also used to convey the message that a particular individual was a slave to a sovereign, either divine or mortal. It is uncertain, however, if these ancient Near East practices were still common in the time of Rabbi Shimon and, even if they were, whether Rabbi Shimon was aware of them. Nevertheless, Rabbi Shimon sees tattooing God's Name as too close to such polytheistic practices. Potentially motivated by a desire to ensure Jews remain culturally, religiously, and visually distinct, Rabbi Shimon may have offered this explanation as the rational reason for the prohibition. It is certainly a concern that is illuminated in later writings, including the *Mishnah*'s contemporary, the *Tosefta*.

Tosefta:

The *Tosefta*, a supplement to the *Mishnah*, continues to be concerned with when the prohibition against tattooing applies. According to rabbinic tradition, the *Tosefta* was edited around the same time Yehudah haNasi redacted the *Mishnah* (ca. 200 C.E.).¹² Like the *Mishnah*, the *Tosefta* is a compilation of oral traditions. At times, it mirrors its Mishnaic counterpart both in structure and content, and at other times, it includes additional or contradictory teachings. The material on tattooing, found in *Tosefta Makkot* 4:15, is strikingly different than what was presented in the *Mishnah*. Unlike the *Mishnah*, the *Tosefta* is largely silent with regards to the particular process of implementation of the prohibited *ketovet ka'aka*. Of greater concern for the editors of this work was the circumstance of culpability.

12. Although the word "*Tosefta*" means "addition," modern scholarship is uncertain whether the *Tosefta* came after the *Mishnah* or before it. According to Elon, "The redaction of the *Tosefta* should probably be dated to the generation immediately following R. Judah Ha-Nasi." [Elon, *Jewish Law*, p. 1081]. I purposefully made my words vague regarding the exact order in order to allow for multiple interpretations. For a thorough introduction to the various theories regarding the *Tosefta*'s dating, authorship, and relationship to the *Mishnah* refer to Strack, *Introduction to the Talmud*, pp. 169-177.

הכותב כתובת קעקע בבשרו של חבירו - שניהם חייבים. במה דברים אמורים?
 בזמן שהיו שניהם מזידין. אבל אם היו שניהם שוגגין שניהם פטורין. אחד שוגג
 ואחד מזיד שוגג פטור מזיד חייב. ואינו חייב עד שיכתוב ויקעקע בדיו ובכחול
 לעבודה זרה. קלפו באוזמול פטור. הרושם על עבדו שלא יברח פטור.

One who writes a *ketovet ka'aka* on the flesh of his fellow – the two of them are culpable. On what circumstances is this said? When the two of them do so deliberately. But, if the two of them were doing so inadvertently, then the two of them are exempt [from culpability]. [However, if] one does so inadvertently, and the other deliberately, [then] the one who did so inadvertently is exempt [from culpability, while] the one who did so deliberately is culpable. He is not culpable until he writes and incises with [black] ink or blue dye for the purposes of idolatry. [If he only] scraped him with a cutting tool, he is exempt. He who marks his slave so that he will not flee is exempt [from culpability].

Great detail is given in the *Tosefta*, making it explicit, that culpability is contingent upon one's *intent* to make a mark on the skin. Similar to the *Mishnah*, the *Tosefta* reminds the reader that in order to be culpable one must make this mark through two distinct acts: writing/כתב and incising/קעקע. Therefore, "if he only scraped him with a cutting tool, he is exempt." Not simply because he did not write, although this is an issue in the case. But, the scrape of a cutting tool exempts an individual under the prohibition because it is not clear the individual intended to make a tattoo.

In addition to determining that one's act of writing and incising with "black ink or blue dye" was deliberate to be culpable, it must also be confirmed that the tattoo was made for a specific *purpose*: idolatry. The stipulation of idolatry does not appear as a subordinate clause. Rather, as it is written in conjunction with the two rudimentary acts of tattooing, one may surmise that purpose is integral to the basic definition of *ketovet ka'aka*. In other

words, one cannot be held liable under the prohibition – even if he incises and writes – unless the tattoo is made specifically for idolatry.

This restricted definition of *ketovet ka'aka*, which makes culpability conditional to *intent* and *purpose* (rather than *presence* or *content* of the mark, as was the case in this *Mishnah*), means that some tattoos may be exempt from culpability under the prohibition. One exception made in the early rabbinic work of the *Tosefta* was allowing Jews to tattoo slaves. According to the *Tosefta*, “He who marks his slave so that he will not flee is exempt [from culpability].” The exception is made because of the provision in the definition “so that he will not flee.” It clearly acknowledges that the purpose of tattooing a slave was not idolatry and thus not punishable under the stipulations of the prohibition discussed above.

Babylonian Talmud, Makkot 21a:

Now that the four criteria of culpability have emerged: purpose, content, intent, and purpose, which one ultimately had enough judicial weight to constitute a violation of *ketovet ka'aka*? The next major corpus of *halachah*, the Babylonian Talmud (BT), sets out to address this exact question. Although there are numerous teachings in the Babylonian Talmud that correspond – sometimes even verbatim – to the *Tosefta*, the Babylonian Talmud is primarily a commentary on the *Mishnah*.¹³ The BT comments on 36½ of its 63 tractates. Those Mishnaic tractates which are not included in this

13. According to the position of J.N. Epstein, a primitive form of today's *Tosefta* is the source for the *baraitot* (extraneous rabbinic teachings not contained in the *Mishnah*) found in the Babylonian Talmud. Albeck, on the other hand, asserts that the frequent deviation of *Tosefta* parallels in the Babylonian Talmud, along with its failure to quote the *Tosefta* in crucial passages is proof that the redactors of the Talmud did not yet know the *Tosefta*. [Strack, *Introduction to the Talmud*, pp. 155-156] In any case, “in a very approximate manner, BT can be called the Babylonian commentary on the *Mishnah*.” [Strack, *Introduction to the Talmud*, p. 191]

Babylonian commentary were left out because these laws “had no practical relevance” for the Jews of Babylonia at the end of the fourth century C.E.¹⁴ Although the Talmud will not make a decisive pronouncement, it will spur on the discussion of what makes one culpable to this practical and relevant act in the tractate of *Makkot* 21a.¹⁵

מתני' הכתוב כתובת קעקע, כתב ולא קעקע, קעקע ולא כתב, אינו חייב עד שיכתוב ויקעקע בדיו ובכחול ובכל דבר שהוא רושם. רבי שמעון בן יהודה משום רבי שמעון אומר, אינו חייב עד שיכתוב שם השם, שנאמר (ויקרא יט) וכתובת קעקע לא תתנו בכם אני ה' : **גמ'** אמר ליה רב אחא בריה דרבא לרב אשי עד דיכתוב אני ה' ממש אמר ליה לא כדתני בר קפרא אינו חייב עד שיכתוב שם עבודת כוכבים שנאמר וכתובת קעקע לא תתנו בכם אני ה' אני ה' ולא אחר : אמר רב מלכיא אמר רב אדא בר אהבה אסור לו לאדם שיתן אפר מקלה על גבי מכתו מפני שנראית ככתובת קעקע אמר רב נחמן בריה דרב איקה שפוד שפחות וגומות רב מלכיא שמעתתא רב מלכיו וסימניך מתניתא מלכתא מאי בינייהו איכא בינייהו שפחות רב ביבי בר אביי קפיד אפי' אריבדא דכוסילתא רב אשי אמר כל מקום שיש שם מכה מכתו מוכיח עליו :

Mishnah: If one writes a *ketovet ka'aka*, [one is culpable]. If he wrote but did not incise [it into the skin], or incised [into the skin] but did not write, he is not culpable until he writes and incises [into the skin whether] with [black] ink, blue dye, or anything that leaves a mark.

Rabbi Shimon ben Yehudah, in the name of Rabbi Shimon, says: “One is not culpable unless he writes [and incises] there the Name [of God]. For it is written: ‘You shall not incise writing on yourselves: I am the LORD,’ (Lev 19:28).”

14. For example, “the agricultural laws were largely tied to the land of Israel; the purity laws generally were no longer practical because there was no temple cult.” [Strack, *Introduction to the Talmud*, p. 191] Yet, the rabbinic authorities found tattooing practical enough for their time and place to discuss and codify it within the Babylonian Talmud.
15. There are two components of the Babylonian Talmud. The first is the *Mishnah*, presented above. The second is the *Gemara* (meaning, “to complete” and “to learn”). The *Gemara* consist of dialectic discussions on the Mishnaic content, in order to further extrapolate the legal and normative ramifications relevant for the Jewish community of this later period. [Strack, *Introduction to the Talmud*, pp. 209-215]

[Rendering the Biblical verse: “You shall not incise writing on yourselves of ‘I am the Lord.’”]

Gemara: Rav Acha the son of Rava asked Rav Ashi: “[Does Rabbi Shimon ben Yehudah in the name of Rabbi Shimon] really [mean that one is not culpable] unless he will write the specific words: ‘I am the LORD’?” [Rav Ashi] said to him: “No. As Bar Kappara taught in a *baraita*: ‘One is not culpable until he writes the name of idolatry [i.e. a pagan deity].’ As it is said [in Scripture]: ‘And you shall not incise marks on yourself: I am the LORD,’ (Lev. 19:28). [The implication for these final words is] I am the LORD and no other.”

Rav Malkiya said in the name of Rav Adda bar Ahavah: “A person is forbidden to put ashes on his wound, because his [healed] wound [will] appear like a tattoo. [The ashes will leave a mark in the skin after the wound is healed.]”¹⁶

Rav Nachman the son of Rav Ika: “[The rulings about] the spit, maidservants, and pores [were stated] by Rav Malkiyo. The [rulings about] locks of hair, ashes, and the cheese [were stated by] Rav Malkiya.’ Rav Pappa, [however attributes these rulings somewhat differently], saying: ‘[The rulings concerning] a *mishmah* or a *baraita* [were stated by] Rav Malkiya. The statement of the Amoraim [were stated by] Rav Malkiyo. Your mnemonic device [to remember which rulings were made by whom] is a *Tannaic statement is a queen*. What is the difference between them? The difference between them is [in attributing the ruling about] the maidservants.

Rav Bibi bar Abaye was careful [not to place ashes] even on the puncture made by a lancet. Rav Ashi [disagrees], saying: “Wherever there is a wound, the wound shows his [intention of healing].”¹⁷

16. The subsequent paragraph is a tangential discussion which has no real bearing on the discussion of tattoos. The discussion circles around the confusion between two rabbis with similar names: Malkiya and Malkiyo. In the work that would emerge as one of the greatest in the post-Talmudic halachic period, the *Sefer haHalachot* by Rabbi Isaac ben Jacob haKohen Alfasi, the statement regarding the ashes on the wound is attributed to Rav Malkiyo. The conclusion that it was Rav Malkiyo is also supported in the halachic work of Rabbenu Asher.

17. This insertion into the translation is required to make sense of Rav Ashi’s position. Not only does the content suggest this reading, but we also understand Rav Ashi’s position from the *Tosefta*. According to the *Tosefta*, a scrape made by a cutting tool

Analyzing the discussion of the *Mishnah*, with some allusion to the *Tosefta*, the rabbinic authorities of the Babylonian Talmud initiate a debate as to whether the *purpose* or the *presence* of the mark violates the prohibition of *ketovet ka'aka*. According to Rav Ashi, it is not the tattoo of the Name of God that makes one culpable. It is the name of another deity *other* than God that predicates culpability. It could be argued that these positions are merely debating *content*. It is as if to say that one is punished only when the tattoo is either the Name of God (according to Rabbi Shimon) or the name of a pagan deity (according to Rav Ashi).

However, Rav Ashi's position speaks to something other than content. From his use of the *baraita* of Bar Kappara comes a midrashic explanation to the precedent set in the *Tosefta* that hung culpability on *purpose*.¹⁸ As the *baraita* states, "I am the LORD and no other." Unmistakably, this is a paraphrase of the monotheistic pronouncement and, more importantly, the Divine edict against idolatry from the Ten Commandments. As it is stated there: "I the LORD am your God who brought you out of the land of Egypt, the house of bondage. You shall have no other gods beside Me."¹⁹ Therefore, Rav Ashi's position posits culpability neither on the presence of the mark nor on the content by itself. Rather, what makes one liable is the purpose for which the mark was intended to fulfill – idolatry.

The position which links culpability to purpose is thereupon disputed. On the one side the *Gemara* presents a case from Rav Malkiya in the name of Rav Adda bar Ahavah.

exempts one from punishment because there was no intent to make a tattoo. Therefore, a healed wound also shows that the intent was not to make a tattoo. This insertion will be justified further on in this section.

18. *Tosefta, Makkot* 4:15 states, "He is not culpable until he writes and incises with [black] ink or blue dye for the purposes of idolatry."

19. Exodus 20:2-3 and Deuteronomy 5:6-7

According to his opinion, “a person is forbidden to put ashes on his wound,” because the result of this course of action will leave a mark on the skin. The implication of this position is twofold. Perhaps, this is a concern for *marit ayin* (not to give the appearance of wrongdoing), as if to say, even though the purpose was not idolatrous, it could be mistaken as such. Or, perhaps, the mark itself is taboo no matter for what purposes it was made. In either case, Rav Adda bar Ahavah’s position would support the unconditional statement of the *tanna kamma* from the *Mishnah*, which gave no consideration regarding the content, intent, or purpose of the mark. The *stam mishnah* generally prohibited the presence of any mark that was the result of an incision and insertion of marking material.

After a tangential discussion, Rav Ashi returns to support the claim that purpose, more than content or presence of the mark, is paramount when determining culpability. From this case in point, a healed wound that bares the permanent stain of its remedy is not forbidden. Why? Because, although the mark is a result of an incision and the placement of colored matter in that incision, the wound (i.e. the incision) does not appear to have been made deliberately. This is similar to the case mentioned in the *Tosefta* of a scrape made by a cutting tool. Furthermore, since the incision was not deliberate, an intended purpose – other than healing – cannot be deduced from the resulting mark. The proof in this case, according to Rav Ashi, is nothing other than the healed wound itself. It testifies, as Rav Ashi’s final words imply, a purpose of healing rather than idolatry.²⁰

20. “Wherever there is a wound, the wound shows his [intention of healing].” The Tosafists, who will write their commentaries on the BT from the twelfth to the thirteenth centuries, state that the position of Rav Ashi will become the *halachah*. As it is written, “Rav Ashi says: ‘His wound testifies to it.’ Thus it (i.e. his position) is the *halachah*.” By concurring with Rav Ashi, the Tosafists – at least in this commentary – believe that one is only culpable when the purpose of the tattoo is idolatrous. In *Gittin*, however, the Tosafists present a position that can be read in one of two ways. Either they still hold to this opinion in *Makkot*, or they have developed a contradictory opinion, prohibiting all marks.

As is often the case in the Babylonian Talmud, both positions are articulated without a definitive ruling. It, nevertheless, can be argued that content appears the least potent factor when determining culpability. What remains as candidates for adjudicating punishment in the middle of the first millennium of the Common Era are the presence, intent, and purpose of the mark. Without a decisive halachic pronouncement in the Talmud, however, a clear understanding of what makes one culpable is left for future rabbinic authorities to decide as the debate on tattooing continues through the centuries.

Babylonian Talmud, Gittin 19b-20b:

That debate only gets more complex as the Babylonian Talmud preserves a discussion on tattooing in tractate *Gittin*, pages 19b-20b. The tractate postulates an alternative application for the tattoo, other than idolatry, healing, or marking a slave “so that he will not flee.” In *Gittin*, tattooing a *get* on the hand of the slave is also considered.²¹

לרמי בר חמא נמי לא קשיא בכתובת קעקע השתא דאחית להכי מתניתין (לרבא)
נמי לא חיקשי בכתובת קעקע.²²

Regarding the [position of] Rami Bar Chama, there is no difficulty that a tattoo [on the hand of a slave can function as a legitimate *get*]. Now that you have arrived at this point, there is also no difficulty with the stipulation (of Rava - that a *get* cannot be altered), [since] a tattoo [is indelible].

The *Mishnah*, from which this surprising quandary in the *Gemara* germinates, comes from tractate *Gittin* 2:3. According to its translation, “We may write a *get* with anything: with ink, with paint, with red pigment, with gum, with ferrous sulfate, or with anything

21. A *get* is a ritual bill of divorce within Jewish tradition.

22. BT *Gittin* 20b

that is lasting... We may write a *get* upon anything: on the detached leaf of an olive tree, on the horn of a cow, or on the hand of a slave. And, he must give her the slave.”

Subsequently, within the *Gemara*, the rabbinic authorities begin to define the limits and limitations of the *Mishnah*, particularly when it comes to the difficulties raised with writing a *get* “on the hand of a slave.” The first difficulty presented regards the transfer of the *get*. As was stated in the *Mishnah*, “He must give her the slave,” meaning the husband must physically transfer the bill of divorce to his wife. However, if the *get* was written on the hand of a slave, who is to say the slave did not walk over to be in the possession of the wife by his/her own accord? To resolve this problem, the *Gemara* informs us that there must be “witnesses to the delivery.”²³

Yet, the rabbis wonder, what if there were no witnesses? It would remain uncertain whether (1) the woman legally obtained the *get* and, (2) more importantly, whether or not the document was forged (i.e. written by the wife and not the husband). To resolve the second difficulty, Rami bar Chama suggested that the “writing” mentioned in *Mishnah Gittin* 2:3 is really a tattoo. Not only will the tattoo preserve the unique handwriting of the husband, but according to the *Gemara* section presented above, it also fulfills Rava position that the *get* cannot be altered. A tattoo’s indelible nature certainly qualifies.

Readers of the *Gemara* may consider the discussion absurd. How could a tattoo be a legitimate *get*, when tattoos – at least in some yet to be defined way – are prohibited? Initially, it can be argued, this discussion was simply an attempt to rationalize the *Mishnah*’s outlandish stipulation that all writing, even the writing on the hand of a slave,

23. *Ibid*

can function as a *get*. Certainly, the absence of a commentary on the topic by such notable authorities as RaSHI would substantiate an argument of the discussion's hypothetical nature, a mere exercise of mental aerobics.²⁴

Regardless, the Tosafists (students of RaSHI) respond seriously to the notion that a tattoo may function legitimately within Jewish culture.²⁵ In their commentary on the BT *Gittin* passage, they write:

ומיהו איסורא דרבנן איכא הכא דאפי' אפר מקלה אסור ליתן על גבי מכתו מפני
שנראה ככתובת קעקע ואפי' הוא הכא איסורא דאורייתא מ"מ (מכל מקום) הוי גט
כדאמרי' לעיל כתבו על איסורי הנאה כשר אע"ג דאסור לכתוב דהא מיתהני
באיסורי הנאה.

[Tattoos] are forbidden, according to the rabbis. There are [some rabbis, who say] even the ashes placed upon an open wound are forbidden for the [healed] wound will appear like a tattoo. Even if the [tattoo] were a Biblical prohibition, it [i.e. the tattooed *get*] would still be a [legitimate] *get*. As it is stated above,²⁶ the writing [of a *get*] on items forbidden to derive benefit are still valid. Although it is forbidden to write [a tattoo], one may benefit from such a prohibited item.

Some may interpret the Tosafists' position as categorically forbidding all tattoos, whether or not this was the intention of the Biblical prohibition. However, this interpretation would be premature and inconclusive as the Tosafists' articulate a seemingly contrary

24. The only comment RaSHI makes on tattooing in tractate *Gittin* of the BT is that the tattoo "cannot ever be erased." RaSHI, however, comments more in-depth on the previous Talmudic passage of *Makkot* 21a. He wrote, "the essence of the transgression is because of the name of [a pagan deity for] idol worship. However, it is forbidden to write [on the flesh] any writing at all, even according to Rabbi Shimon. Rather for him (Rabbi Shimon) it is that culpability (i.e. punishment) does not apply [for all writing, just the tattoo of the name.]" Seemingly, RaSHI would like to cast the halachic net out wide to wrangling in all tattoos, but understands that the previous rabbinic positions leans toward the lenient, aligning culpability to idolatry.

25. The Tosafists were a collection of halachic authorities from primarily Germany and France as well as, to a limited degree, England, Italy, and the Slavic countries. The work of the Tosafists spanned over two hundred years. Therefore, only the first of this group were the direct students of RaSHI. The remainder become the students of the students of RaSHI. [Elon, *Jewish Law*, pp.1118-1119.]

26. The statement comes from the *Gemara* discussion on the *Mishnah* in BT *Gittin* 20a.

position in BT *Makkot* 21a, which aligns culpability to purpose. According to that commentary, “Rav Ashi says: ‘His wound testifies to it [i.e. his intention was not to make a tattoo, but to heal a wound]. Thus, it is the *halachah*.” Therefore, a more likely interpretation of the Tosafists’ position is to say that “even if” all tattoos were forbidden by the Bible – not actually believing it – the tattooed *get* on the hand of a slave would still function legitimately.²⁷

The Tosafists are not alone. Their position is substantiated throughout the classic rabbinic period. From the *Tosefta* to the Babylonian Talmud to one of the greatest authorities of the period, Joseph Caro, tattooing of slaves was regarded as an exemption to culpability under the prohibition of *ketovet ka’aka*.²⁸ The fact that the Tosafists and other authorities discuss the exemption at length, leads one to believe that tattooing for the purpose of marking slaves either as property or for more inventive purposes as a *get* was a genuine practice within, at least known by, the Jewish community of the classic rabbinic period.

27. This interpretation reads “even if it were” as an unreal hypothetical “as if it were.” As a result, what could be viewed on the surface as two contradictory statements from one source, the Tosafists, is harmonized. From *Makkot* 21a, the Tosafists aligned culpability to purpose, permitting ashes to be placed upon a wound. Here, in *Gittin*, it could be argued that the Tosafists believed all tattoos regardless of purpose are forbidden, prohibiting the placing of ashes upon a wound. Seeing that this contradiction could lead to potential difficulties, Joseph Caro will question in the *Beit Yosef*: How could putting ashes on wound be forbidden by the rabbis, when here even a tattoo of a *get* is not invalidated? Caro concludes, “even if it were” was an acknowledgement by the Tosafists that “it was not [really prohibited], for the tattooed *get* is not invalidated [either].” Similarly, Caro will argue, neither should ashes on a wound nor potentially a tattoo not made for idolatry be forbidden either. In this way, Joseph Caro prevents possible points of contention to his conclusion: “He who marks his slave so that he will not flee is exempt [from punishment].” Obviously, the tradition of the *Tosefta* was either in mind or in hand when composing this work. [*Sefer HaTurim*, YD, *Hilchot Ketovet Ka’aka* 180, s.v. ומורר in *Beit Yosef*, and *Shulchan Aruch*, *Hilchot Ketovet Ka’aka v’Krichah* 180:4]

28. See Caro’s position at the end of footnote 27.

Sefer HaMitzvot and Mishneh Torah:

As the discussion on tattooing continued to include more exemptions, the *tanna kamma*'s position in the *Mishnah* correlating culpability with the presence of *any* mark was seemingly losing its virility among the classic rabbinic authorities. Emerging as the more likely criterion for culpability remained either *intent* or *purpose*. Which factor violated the prohibition of *ketovet ka'aka* in the eyes of the classic rabbinic authorities was addressed in the two great halachic works of Rabbi Moshe Ben Maimon (RaMBaM/Maimonides, 1135-1204 C.E.): *Sefer haMitzvot* and *Mishneh Torah*.²⁹

Both in his style of writing, initiating a new brand of halachic literature later known as codes, and in content, being the first to discuss the prohibition's punishment as well as to whom it applies, Maimonides separates himself from his predecessors. Parts of Maimonides writing, however, continued to be plagued with the same ambiguity found in previous halachic works, leaving the reader confused as to which way one should advance along the journey of interpretation to determine culpability under the prohibition.

29. RaMBaM is one of the greatest sages of the medieval period. Not only was he an avid scholar of Jewish law, but also of Jewish philosophy. In addition, he also practiced medicine. RaMBaM was born in the Spanish city of Cordoba shortly before the fanatical Muslims, named Almohads, came to power. To avoid persecution by this Muslim sect, which offered both Jews and Christians the choice of conversion to Islam or death, Maimonides fled with his family, first to Morocco, then to the land of Israel, and finally to Egypt. Despite the volatile environment in which Maimonides grew up in, he began to produce some of the greatest law codes of all time: the *Sefer HaMitzvot* and the *Mishneh Torah*. [Barry W. Holtz. *Back to the Sources: Reading the Classic Jewish Texts*. (New York: Summit Books, 1984) pp. 273-274] This new brand of Jewish legal codes was motivated by the large amount of halachic material, which made it difficult to navigate and understand, as well as, the social and historical milieu [Elon, *Jewish Law*, pp.1184-1186].

The journey begins with Maimonides' enumeration of the fabled 613 commandments of the Bible, in *Sefer haMitzvot*.³⁰

והמצוה האחת וארבעים - האזהרה שהוזהרנו מלרשום גופנו במיני הכחול, והסקרה וזולתם כדרך שעושים עובדי עבודה זרה כפי שהדבר מפורסם אצל הקבטים עד היום. והאזהרה על כן הוא אמרו יתעלה, "וכתבת קעקע לא תתנו בכם." והעובר על לאו זה חייב מלקות. וכבר נתבארו דיני מצוה זו בסוף מסכת מכות.

Commandment 41 - By this prohibition we are forbidden to mark our bodies with all types of blue or red dye, or with any other color, as is the way of idolaters in acts of idolatry, for such a thing is common among the Copts to this day.³¹ The prohibition is contained in God's words (may He be exalted), "You shall not incise writing on yourselves..." The punishment for contravention of this prohibition is flogging. The provisions of this commandment were already explained at the end of tractate *Makkot*.

In the first of his two great works, Maimonides leaves little room for interpretive maneuvering. Tattooing was undeniably associated with idolaters and the practice of idolatry. Yet, was the Jew, according to RaMBaM's position, prohibited from making any mark simply because tattooing was practiced by those outside the Jewish community? Such an interpretation would read "כדרך" as "because," rendering the verse above as Jews "are forbidden to mark [the] body...*because* idolaters [do such] in acts of

30. *Sefer HaMitzvot* (Book of the Commandments), originally written in Arabic, lays out what Maimonides considered to be the 248 positive commandments and the 365 negative commandments in connection with the Bible, each with a brief description. This was to be a precursor, a preparatory exercise, to his larger work the *Mishneh Torah* [Elon, *Jewish Law*, pp.1186-1187].

31. It is interesting that RaMBaM mentions in the halachic codes the use of "red." As was stated in the introduction to the previous chapter, anthropologists have long held the belief that both red and black, not blue, were the earliest colors to be used in the primitive practice of tattooing. The recognition of red in the use of tattooing appears to have been first recorded in rabbinic literature by RaSHI. As he defines a *ketovet ka'aka* in his commentary on *Makkot* 21a, "The writing begins on the flesh with pigment or with red paint and afterwards he incises the flesh with a needle or knife, inserting the color between the skin and the flesh so that it appears every day, a written tattoo." Also, as was mentioned in the previous chapter, Copts are a sect of Christianity, who reside in Egypt. Included among their customs is the tattoo, usually a cross, on the underside of their wrist. It is likely, since RaMBaM was residing in Egypt, that he was aware of this tattooing custom among the Coptic Christians.

idolatry?” Or, was it RaMBaM’s position to say Jews “are forbidden to mark [the] body...*in the way* [i.e. in the exact manner] that idolaters [do] in their acts of idolatry?” By this latter interpretation, tattooing for alternative purposes other than idolatry may be entertained by the Jewish community.³² No matter which way one diverges on the interpretive path, central in the discourse on the prohibition, according to Maimonides, is the concern over the idolatrous *purpose* of the mark.³³

Unlike the typical penalty for idolatry, i.e. death, the punishment for tattooing is flogging. There is no direct clarification in the text why flogging is attributed as the punishment. For greater understanding, RaMBaM directs the reader to explore the end of tractate *Makkot* in the *Mishnah*.³⁴ There one finds a citation from the Book of Deuteronomy: “If you fail to observe faithfully all the terms of this teaching that are written in this book...the LORD will inflict extraordinary מכות on you and מכות on your offspring...”³⁵ מכות in ancient Israelite contexts are “plagues.”³⁶ However, by the time the classic rabbinic period roles around, מכות are no longer plagues, but “lashes” that are inflicted

32. As was already presented, alternative uses of the tattoo were already entertained by the rabbinic sages of the *Tosefta*, the authorities of the BT, as well as, eluded to in the commentaries of the Tosafists.

33. More detailed than other halachic works, we learn from Maimonides that the tattoo served as a mark of attachment or servitude to a particular deity. In the *Mishneh Torah*, Maimonides writes, “*Ketovet ka’aka*...this was a custom of the idol-worshippers, who used to mark themselves for idolatry; that is to say that the tattooed was a slave sold to the idol and marked for its service.” As was discussed in the previous chapter, this often transpired in ancient Egypt as well as in other regions of the ancient Near East. Therefore, either the practice has continued, as referenced in *Sefer HaMitzvot*, or RaMBaM is recording a vestige of collective memory from an earlier period of Egyptian history.

34. *Makkot* 3:14

35. Deuteronomy 28:58-59

36. F. Brown, S. Driver, and C. Briggs. “מכה.” The Brown-Driver-Briggs Hebrew and English Lexicon. (Peabody, Massachusetts: Hendrickson Publishers, Inc., 2003). pp. 646-647.

upon the guilty.³⁷ While not stated by Maimonides, rabbinic tradition has long understood that the number of lashes administered should not exceed 39.³⁸

Maimonides preparatory work on the 613 mitzvot in *Sefer haMitzvot*, which presented for the first time an explicit punishment for contravention of the prohibition - flogging, was followed by a more extensive and precise accounting, known as the *Mishneh Torah*, which discussed upon whom the punishment was to be applied.³⁹ RaMBaM's conclusions can be found in the first book of the *Mishneh Torah*, *Sefer haMeidah*, under the heading of *Hilchot Avodat Kochavim* (Laws against Idol Worship) 12:11. In it he writes:

”כתובת-קעקע” האמורה בתורה, הוא: שישרט על-בשרו וימלא מקום השריטה כוחל, או דיו, או שאר צבעונים הרושמים - וזה היה מנהג עובדי-כוכבים שרושמים עצמם לעבודת-כוכבים, כלומר: שהוא עבד מכור לה ומרשם לעבודתה. ומעת שירשם באחד מדברים הרושמים אחר שישרוט באיזה מקום מן-הגוף, בין איש בין אישה - לוקה. כתב ולא רשם בצבע, או שרשם בצבע ולא כתב בשריטה - פטור, עד שיכתוב ויקעקע, שנאמר: וכתובת קעקע (ויקרא יט, כח). במה דברים אמורים? בכותב, אבל זה שכתבו בכשרו וקעקעו בו - אינו חייב, אלא אם-כן סיע כדי שיעשה מעשה, אבל אם לא עשה כלום - אינו לוקה.

“*Ketovet ka'aka*,” as mentioned in the Torah (Lev. 19:28), consists in lacerating the flesh and filling the place of the laceration with blue dye, with [black] ink, or with whatever color leaves a mark. This was a custom of idol-worshippers, who

37. Marcus Jastrow. *A Dictionary of the Targumim, the Talmud Babli and Yerushalmi, and the Midrashic Literature*. (Hotzeit Chorev: Jerusalem) p. 781

38. This ruling comes from the Mishnaic sages' understanding of Deuteronomy 25: 2-3: “The guilty one is to be flogged, the magistrate shall have him lie down and be given lashes in his presence, by count, as his guilt warrants. He may be given up to forty lashes, but not more, lest being flogged further, to excess, your brother be degraded before your eyes.” The rabbis, fearing to even reach 40, limited the number of lashes to “40 less one,” as written in *Makkot* 3:10-11.

39. The *Mishneh Torah* (“The Recapitulation of the Law”) is also called *yad hachazakah* (“The Strong Hand”), as the numerical value of the Hebrew word “*yad*” is 14. This correlates with the 14 books that comprise the full body of this legal work. Each of these fourteen books are divided into smaller sections called *Hilchot*, “Laws of...” then followed by the general topic of law that will be discussed. The entire *Mishneh Torah* contains 83 *Hilchot*, which are in turn sub-divided into chapters. The chapters are further divided into paragraphs. Each paragraph is considered one law, or *halachah*. [Elon, *Jewish Law*, pp. 1195-1203].

used to mark themselves for idolatry; that is to say that the tattooed was a slave sold to the idol and marked for its service. As soon as one writes with any material that leaves a mark, after [having previously made] an incision in any part of the body, whether it be a man or a woman, that person incurs the punishment of flogging. If he wrote on the flesh [by incision], without marking with printing matter, or marked with printing matter without writing [by incision] he is exempt [from culpability]. He is only culpable if he writes and incises, as it is said: “nor incise writing...,” (Lev. 19:28). On whom are these things stated? [This rule applies] to the tattooer, but the person whose flesh is incised and written [i.e. tattooed] upon is not culpable unless he assisted by some act. But, if he did nothing, he is not punished with flogging.

In RaMBaM’s extended formulation of the mitzvot he questions: “On whom are these things stated?” In other words, upon whom does the prohibition apply and upon whom can the punishment of flogging be administered? As more of the received tradition is not only acknowledged, but consequently confirmed, Maimonides injects the prohibition with gender neutrality. According to the text: “whether it be a man or woman that person incurs the punishment of flogging.” This legal condition was already stipulated as a general rule in the *Mishnah*. In tractate *Kiddushin* 1:7, it states: “The observances of all negative ordinances, whether they depend on the time of year or not, is incumbent upon both men and women.” It is likely that that Maimonides included it in the description of the prohibition as quick reference for his readers.

Beyond gender equality, Maimonides stipulated that culpability and punishment also applies to the person who intended to make a tattoo. As RaMBaM writes, “On whom are these things stated? To the tattooer (i.e. the active participant), but the person whose flesh is incised and written upon (i.e. the passive participant) is not culpable unless he assisted by some act.” Maimonides ruling elucidates his previous position in the *Sefer haMitzvot*

and makes the position of the *Tosefta* authoritative.⁴⁰ It is not necessarily the presence of the mark that is ingrained with culpability. Transgression of the prohibition, more precisely, is determined when one commits a deliberate act of tattooing or intentionally complies in its application.⁴¹ This position, which links culpability to intent, will remain the minority opinion of culpability among the rabbinic sages.

Even so, Maimonides continued to struggle with whether *purpose* of the mark should join *intent* as a stipulation of the prohibition of *ketovet ka'aka*. The struggle is inherent in the *Mishneh Torah*'s ambiguous statement, "*Ketovet ka'aka*...was a custom of idol worshippers, who used to make themselves for idolatry." Does this line imply that only those marks whose purposes mirror the practice of idolaters are a violation of the prohibition? This interpretation would coincide nicely with the heading of this section, which specifically addressed practice: "Laws against Idol *Worship*." Or, is this statement affirming the contrary, prohibiting all forms of tattooing because those outside the Jewish community engage in such an activity for the illicit purpose of idolatry? If the latter is so, Jews should not intentionally engage in a similar behavior, regardless of purpose. This latter interpretation may have a little more grounding in Maimonides' work. For one, unlike the *Tosefta*, the stipulation of purpose is not articulated in direct connection to the basic definition of *ketovet ka'aka*. In the *Mishneh Torah*, RaMBaM simply wrote: "as

40. While Maimonides has his critics, even in his day, many sages throughout history regard the work of Maimonides very highly, according him a prestigious place among the codifiers. Therefore, with this level of authority, Maimonides' use of previous works has the result of solidifying the position in the legal discourse. The material of the *Tosefta* being affirmed by Maimonides is the section regarding intent and culpability. As it was stated in the *Tosefta*: "When the two of them do so deliberately. But, if the two of them were doing so inadvertently, then the two of them are exempt [from culpability]. [However, if] one does so inadvertently, and the other deliberately, [then] the one who did so inadvertently is exempt [from culpability, while] the one who did so deliberately is culpable."

41. As the issue of tattooing continues to evolve through the rabbinic texts, nowhere is it mentioned what constitutes an assisting act of *ketovet ka'aka*. That discussion is not picked up until the modern period among the rabbinic authorities of the Orthodox movement. Please see the next chapter for a detailed discussion on the issue.

soon as one writes with any material that leaves a mark, after [having previously made] an incision...that person incurs the punishment of flogging.” Second, there is no mention of exempted purposes of tattooing: whether medicinal or proprietary. While the evidence weighs heavily on the side of intent rather than purpose, at this stage in the development of the definition of *ketovet ka’aka* the majority opinion regarding culpability is still unclear.⁴²

Sefer haChinuch:

Maneuvering this critical crossroad of juris prudence is the anonymous author of *Sefer haChinuch* (“The Book of Education”).⁴³ Based upon Maimonides system of enumerating the commandments, *Sefer haChinuch* presents much of the earlier halachic material on the prohibition of *ketovet ka’aka*. Where, however, this 13th century author makes progress in the halachic discourse on culpability, where other authorities had not, is in his willingness to provide both legal as well as philosophical underpinnings to the definition of *ketovet ka’aka*. Instead of simply being a stenographer, recording legal precedent for posterity, the author of *Sefer haChinuch* directs Jewish adherents past the

42. Joseph Caro saw the inherent difficulty Maimonides’ silence and ambiguity could raise on this issue, for it allows for either interpretation. Therefore he concluded in *Beit Yosef* that not all marks made intentionally are forbidden. According to Caro, “RaMBaM does not mention this judgment [permitting ashes on a wound for healing] at the end of *Hilchot Avodat Zera*. It means that he holds [to the opinion] that the *halachah* [of ashes on a wound] is permitted, for there is [no need] to explain. [Meaning, that it was so widely accepted there was no need to mention it.] If, [however,] the *halachah* forbade [the placing of ashes on a wound, RaMBaM] would not have made this [argument] from silence.” [Sefer HaTurim, Yoreh De’ah 180, s.v. נזוחר in *BeitYosef*]

43. Even though the work has achieved some distinction among the halachic codes, the author has not, as he remains anonymous. At the end of the preface to the work, he describes himself as “a Jew of the house of Levi of Barcelona.” This has led some to argue that the anonymous author is the renown Talmudic scholar and one of the early authorities, R. Aaron haLevi of Barcelona (1235-1290). In fact, in the first printed edition of the work, Venice 1523, the title page bears the epithet “written by R. Aaron.” The second addition further connects a R. Aaron as the author. In Mitzvah 95, after stating “the Levites my brothers,” the author cites a passage from the Bible that mentions “Aaron.” Recent scholarship has suggested that although it is likely that a R. Aaron from Barcelona wrote *Sefer haChinuch*, it is not the R. Aaron haLevi. [Charles Wengrov, trans. *Sefer HaHinnuch: The Book of [Mitzvah] Education*. Vol. 1 (Jerusalem/New York: Feldheim Publishers, 1978) pp. vii-viii]

ambiguity of RaMBaM, connecting culpability to *intent* as well as to *purpose*. As it is written in Mitzvah 253:

שלא לכתוב בבשרינו כתובת קעקע, שנאמר וכתובת קעקע לא תתנו והענין הוא כמו שעושין היום⁴⁴ (בבשרכם) [בכם] (ויקרא יט, כח). הישמעאלים שכותבים בבשרם כתב מחוקה ותקוע שאינו נמחק לעולם, ואין החיוב אלא בכתב חקוק ורשום בדיו או בכחול או בשאר צבעונין הרושמיין. וכן אמרו במכות, קעקע ולא כתב, כלומר שלא רשמו בצבע, כתב ולא קעקע, כלומר שרשם בשרו בצבע אבל לא עשה שריטה בבשרו, אינו חייב עד שיכתוב ויקעקע בדיו ובכחול ובכל דבר שהוא רושם.

משרשי המצוה מה שכתבנו בהקפת הראש ובהשחתת זקן סמוך, להרחקת כל ענייני עבודה זרה מגופינו ומבין עינינו. וגם זה מן השורש הזה בעצמו שהיה מנהג הגויים שרושמים עצמם לעבודה זרה שלהם, כלומר שהוא עבד נמכר לה ומורשם לעבודתה.

מדיני המצוה מה שאמרו ז"ל שכל מקום שבגוף בין מגולה בין מכוסה בבגדים בכלל איסור זה. ויתר פרטיה בסוף מסכת מכות.

ונוהגת בכל מקום ובכל זמן בזכרים ונקבות. ועובר על זה וכתב אפילו אות אחת בכל מקום שבגופו כעניין זה שאמרנו שהיה חקוק ורשום באחד ממיני הצבעין הרושמיין לוקה, ואם ושמם בו אחרים אינו לוקה אלא אם כן סייע, מן הכלל הידוע לאו שאין בו מעשה אין לוקין עליו.

We should not write in our flesh a *ketovet ka'aka* (incised writing), as it is stated, "Nor shall you incise marks on yourselves," (Lev. 19:28), for this matter is like the Ishmaelites do today.⁴⁵ The Ishmaelites inscribe in their flesh a permanent, adhered writing that can never be erased. One is only culpable for engraved writing marked with [black] ink, or with blue dye or with whatever other color leaves a mark. Thus it was taught in *Makkot*: "If one incised [the skin], but did

44. "בכם" and "בבשרכם" possibly represent variant texts. In some renditions the Biblical verse of Leviticus 19:28 reads, "...nor shall you incise marks on yourself (בכם)." Others render the same verse, "...nor shall you incise marks on your flesh (בבשרכם)."

45. "Ishmaelites," is often code in rabbinic literature for the ethnic group of Arabs or Bedouins. See Jastrow, *A Dictionary of the Targum*, p. 600

not write - as if to say he did not mark it with color - or, if he wrote, but did not incise [the skin] - as if to say he marked his skin with color, but did not make an incision in his flesh - he is not culpable [for punishment under the prohibition], until he writes and incises with [black] ink or blue dye or with anything that makes a mark.

At the root of the commandment lies the purpose we wrote in the nearby section about rounding off the head and shaving the beard with a razor:⁴⁶ to remove all matters of idolatry from our bodies and from [the mind] between our eyes.⁴⁷ This too is for that reason, as it was a custom of the *goyim*⁴⁸ that they would [thus] mark themselves for their idol-worship - as if to say that he was a slave dedicated to it, and marked for its service.⁴⁹

Among the laws of the commandment, there is what the sages of blessed memory said: “That every area of the body, whether generally exposed or covered by clothing, is included under the prohibition.” The rest of its details are toward the end of the tractate *Makkot*.

It is in effect everywhere, at all times, for both man and woman. If a person violates it and inscribes even one letter anywhere on his body in the manner we have stated - engraved and written with one of the kinds of color matter that leaves a mark - he should be given lashes. If others so marked him, he is not to be whipped, unless he assisted - this by the known rule: a negative precept (i.e. “thou shall not”), involving no deed [in its violation], one is not given lashes.⁵⁰

46. The nearby section being referred to is Mitzvah numbers 251 and 252.

47. I have added the words “the mind” into the translation, because the anonymous author began this section by directing the reader to the nearby section (see previous footnote) for the root of the precept. There it is written that the permanent mark “is a constant reminder of the transgression.” Therefore, while one may have chosen to translate *Sefer haChinuch* more literally here, my addition is fitting to the author’s intent. Clearly, this section was intended to provide both the physical as well as the cognitive underpinnings of the prohibition. By adding “the mind” I have made this clearer to the reader of the translation who does not have the nearby sections readily available.

48. I am choosing not to translate this word in the section above, in order to allow the reader to intuit the tone of its meaning for him/herself. Throughout history the implications of the word have changed from neutral to pejorative. I tend to read it here as simply “other nations,” while Charles Wengrov translates it as “heathens.” [Charles Wengrov, trans. *Sefer HaHinnuch: The Book of [Mitzvah] Education*. Vol. 1 (Jerusalem/New York: Feldheim Publishers, 1978) pp. vii-viii]

49. *Mishneh Torah*, Laws Against Idol Worship 12:11

50. BT *Sanhedrin* 63b

Summarizing much of the explications made by previous codifiers, the anonymous author begins by informing the reader of the basis of the commandment. In line with the received tradition, *Sefer haChinuch* points to Leviticus 19:28 as its Biblical source and the Babylonian Talmud, *Makkot* 21a, for much of its rabbinic understanding. In brief, a *ketovet ka'aka* in its most basic sense is a mark made by both writing with an indelible material and incising that material into the skin as to be indelible. Even as it recapitulates the definition, *Sefer haChinuch* appends the classic rabbinic discussion on tattooing with four additional points concerning placement, content, enforcement, and purpose.

Regarding placement, Maimonides had concluded that on “any part of the body” a tattoo is forbidden. It therefore begs the question: Why does *Sefer haChinuch* add “whether generally exposed or covered by clothing?” One possibility is that certain individuals may have attempted to circumvent the law or elude punishment by hiding their transgression under clothing. After all, depending on social contexts, tattoos are not always so ostentatious. For example, the small cross tattooed on the inside of the wrist by the Copts, as noted by Maimonides, was intended to be inconspicuous. Thus, “every area of the body, whether generally exposed or covered by clothing,” closes the potential loophole in the legality of where the mark may or may not be placed.

The second major consideration presented in *Sefer haChinuch* regards the content of the tattoo. Up to this point, content had been relegated as a minor concern for the rabbinic sages. Initially, the *tanna kamma*’s statement in the *Mishnah* regarded a *ketovet ka'aka* as any mark. Then, according to Rabbi Shimon, it was considered to be the Name of God. Later, in the *Gemara* section of the Babylonian Talmud, it was understood to be the name

of a deity other than God. However, here in *Sefer haChinuch*, it states that one violates the prohibition if he or she marks “even one letter.”

One may read “even one letter” figuratively. As if to say, “even the slightest mark” is prohibited, a claim which supports the *tanna kamma*’s position. On the other hand, it may be read very literally. One transgresses the *halachah* only if a letter is tattooed on the skin, thus excusing any tattoo that is graphic in nature. To surmise the exact intent of the writer is difficult, to say the least. In fact, the intended message of “even one letter” may reside in the middle of these two extreme modes of interpretation. A “letter” implies meaning. Thus, it may be the case that any tattoo, whether pictorial or scriptural in nature, is prohibited because both connote meaning. This would explain Rav Ashi’s position from the BT, who insisted that ashes placed upon a wound are not sufficient grounds for culpability. Why? According to *Sefer haChinuch* it is because such marks do not elucidate meaning, especially regarding the message of idolatry.

Still, the possibility exists, “even one letter” speaks not to the content of the tattoo, but to the nature of the act. In the prohibition of writing on Shabbat, one is not culpable for punishment until one writes with two letters.⁵¹ Since one is culpable for “even one letter” in the prohibition against tattooing, one may erroneously think that tattoos are more halachically offensive than desecrating the laws of Shabbat.⁵² This is not the case. To write in the rabbinic period was simply a matter of applying ink to paper or paper-like material. One could quickly pick up a utensil for the purpose of writing, only to recall the

51. *Mishnah, Shabbat 7:2*

52. Believing that tattooing is worse than profaning the Shabbat is expressed in the responsa of Orthodox and Conservative Judaism in the modern period. It arises as an issue in the modern times however, not as a mistaken conclusion from this halachic dispute over the writing on Shabbat, but because of the indelible nature of tattoos. Since transgressing *ketoret ka'aka* leaves a permanent reminder of the transgression and profaning Shabbat does not, it is felt that tattooing is halachically worse.

prohibition of writing on Shabbat after the first mark but before the second one is made. Thus, “two letters” represents a type of halachic insurance, a safeguard to protect as many people as possible from culpability in an inadvertent act of writing on Shabbat.

Tattooing, however, involves more than just a quick dip of ink. It also involves the act of incising. The rabbis do not give tattooing the same consideration as writing on Shabbat because either the more complex nature of the act assumes the individual will have ample time to consider the ramifications of the prohibition, or each act – incising and writing – is considered in itself an act of writing. Thus, in one act and individual makes two marks, incising and writing, reaching the mandated maximum of marks and consigning him/her to punishment.⁵³

The third consideration in the development of the *halachah* on tattooing in *Sefer haChinuch* pertains to the time and place in which the law is enforced. In case one may believe that this law is only relevant to one living in the Land of Israel or at a time when the Temple in Jerusalem is standing, the author of *Sefer haChinuch* stamps an eternal seal on the *halachah*. He writes, “It is in effect everywhere and at all times.”

Even with *Sefer haChinuch*’s illumination of previous halachic works, an answer to the enduring question of culpability does not come until the anonymous author fully utilizes his creative license. Supporting the prohibition with its conceptual and philosophical underpinnings, the author states explicitly that the purpose of the Biblical injunction was to warn Jews “to remove all matters of idolatry from our bodies and from [the mind] between our eyes.” The previously established association between tattooing and idolatry

53. This assertion is supported by RaSHI, who commented in the BT *Makkot* 21a, “It is forbidden to write any writing at all on the flesh. In this manner it is thus a restrictive decree of writing.”

is not limited to a physical act. *Sefer haChinuch* further correlates the affect of an idolatrous mark on the body with an indelible mark left upon the mind.

In considering the cognitive ramifications of the prohibition, it is clear that the author of *Sefer haChinuch* grasped the complex nature of corporal marks, which are multi-vocal. As with all corporal marks, tattoos speak not only to the community in a multitude of ways, but they also speak to the bearer of the mark. Obviously, forbidding a permanent mark on the skin wipes away any residual sign of submission to the illicit act of idol worship to the community. But, with no residual sign left on the body, the individual is also free from the idolatrous message, able to move on from the path of profanity to a path of holiness with greater ease. As the words of Mitzvah 251 state, “The admonition was given explicitly about this matter that people do to their physical selves as it is a constant reminder of the transgression.” Forbidding a tattoo prevents a reverberating echo of the physical act from forever being heard in the transgressor’s mind.

Through the philosophical underpinnings, presented for this first time in the halachic discourse, the author of *Sefer haChinuch* directs us towards a more limited definition of *ketovet ka’aka*. It is not the presence of the mark, nor even the content of the mark, that constitutes a violation of the prohibition. Rather, the culprit of culpability lies in the intentional act of incising and writing commenced for the specific *purpose* of idolatry.

Asheri:

While *Sefer haChinuch* provided a more comprehensive look at the Jewish guidelines for engaging in the practice of tattooing, not all arguments in the discussion were resolved. The question from the *Gemara* of BT *Makkot* 21a remained: Is placing ashes upon a

wound in order to heal it prohibited, exempted, or permitted? As a result of the author's work in *Sefer haChinuch*, which linked culpability of the prohibition to a mark made intentionally for idolatrous purposes, this dispute is finally adjudicated in the subsequent authoritative work of the *Asheri*.⁵⁴

הכתוב כתובת קעקע, כתב ולא קעקע, קעקע ולא כתב, אינו חייב עד שיכתוב ויקעקע בדיו ובכחול ובכל דבר שהוא רושם. רבי שמעון בן יהודה משום רבי שמעון אומר, אינו חייב עד שיכתוב שם השם, שנאמר (ויקרא יט) וכתובת קעקע לא תתנו בבשרכם⁵⁵ אני ה' : אמר ליה רב אחא בריה דרבא לרב אשי (אימא) עד דיכתוב אני ה' ממש אמר ליה לא כדתני בר קפרא אין חייב עד שיכתוב שם עבודת כוכבים שנאמר וכתובת קעקע לא תתנו בבשרכם אני ה' ולא אחר : אמר רב מלכיו⁵⁶ אמר רב אדא בר אהבה אסור לו לאדם שיתן אפר מקלה על גבי מכתו מפני שנראה ככתובת קעקע רב ביבי בר אבוי קפיד אפילו אריבדא דכוסילתא רב אשי אמר כל מקום שיש שם מכם מכתו מוכחת עליו והלכהא כרב אשי דבתראה הוא :

If one writes a *ketovet ka'aka*, [one is culpable]. If he wrote but did not incise [it in the skin], or incised [the skin] but did not write, he is not culpable until he writes and incises [into the skin, whether] with [black] ink or blue dye or anything that leaves a mark. [But,] Rabbi Shimon ben Yehudah [disagrees] saying in the name of Rabbi Shimon: One is not culpable unless he writes [and incises] there the Name [of God], for it was written: "You shall not incise writing on your flesh:⁵⁷ I am the LORD," (Lev. 19:28).

54. Written by Asher ben Yechiel, (a.k.a. Rabbenu Asher or ROSH, 1259-1328 C.E.), the *Asheri* presents an edited version of the Talmudic discussion: cutting the superfluous, presenting the essential and even concisely stating halachic decisions. The *Asheri* resembles *Sefer haHalachot*, the work of Isaac ben Jacob haCohen Alfasi (the "Rif"). But, it differs in quoting later authorities like: Maimonides, the Tosafists and the "Rif" himself. Rabbenu Asher's work superseded Alfasi's within a short time and has been printed with almost every edition of the Talmud since its publication. As stated, one reason for this prosperity is that the ROSH did not shy away from concluding *halachot*. For this reason, I am not presenting *Sefer haHalachot*, for it adds nothing to the discussion on tattooing. [Elon, *Jewish Law*, pp. 1251-1253]

55. See footnote 44

56. Not only does Rabbenu Asher decide halachic matters, he also clarifies the confusion that erupted in the *Gemara* passage of *Makkot* 21a. The statement about the ashes on the wound was not said by Malkiya, rather it was stated by Malkiyo. Asher received this understanding of the tradition from the Rif, who had already written it in his *Sefer haHalachot*.

57. See footnote 44

Rav Acha the son of Rava asked Rav Ashi: “[Does Rabbi Shimon ben Yehudah in the name of Rabbi Shimon] really [mean that one is not culpable] unless he will write the specific words: ‘I am the LORD’?” [Rav Ashi] said to him: “No. As Bar Kappara taught in a *baraita*: One is not culpable until he writes the name of idolatry [i.e. a pagan deity]. As it is said [in Scripture]: ‘And you shall not incise marks on your flesh: I am the LORD,’ (Lev. 19:28). [The implication for these final words is] I am the LORD and no other.”

Rav Malkiyo said in the name of Rav Adda bar Ahavah: “A person is forbidden to put ashes on his wound [to heal it], because it appears like a tattoo.⁵⁸ [The ashes will leave a mark in the skin after the wound is healed.] Rav Bibi bar Abaye was careful [not to place ashes] even on the puncture made by a lancet. Rav Ashi [disagrees] saying: “Wherever there is a wound, the wound shows his [intention of healing].” *The law is according to Rav Ashi as he taught it.*

While most of the *Asheri* is just a scribal copy of the Talmudic discussion, neither in the Talmud nor in any other previous code of *halachah* is a conclusion presented in the dispute between the opinions of Rav Ashi (who permitted placing ashes on a wound) and Rav Malkiyo (who prohibited placing ashes on a wound). It is only here in the *Asheri* that a conclusion is finally reached: “The law is according to Rav Ashi as he taught it.”⁵⁹

With Rabbenu Asher’s one sentence, a dispute that spanned roughly 400 years through various halachic works was finally addressed. Undoubtedly influenced by the efforts of these previous rabbinic authorities, particularly *Sefer haChinuch*, the ROSH ruled that the onus of the prohibition resided in a deliberate act *and* purpose, not just in the presence of

58. See footnote 56

59. The Tosafists, writing in the twelfth and thirteenth centuries, had concluded this (see BT *Makkot* 21a, s.v. רב) slightly before Rabbenu Asher, who writes in the late thirteenth and early fourteenth centuries. Therefore, the ROSH is not necessarily determining the *halachah*. He is rather bringing the halachic tradition preserved in the Ashkenazi source into the Sephardic halachic material. [In a discussion with Dr. Mark Washofsky on 4 November 2008.]

the mark.⁶⁰ Tattooing, as understood by the ROSH, was intimately involved in idolatry and the corporal sign that remains speaks of the forbidden practice. As the wound does not present a message of idolatry, Rav Ashi's position was ruled the correct teaching: placing ashes on a wound for the purpose of healing is not אסור (prohibited). Yet is such a mark permitted or exempted from the conditions of culpability? The ambiguity that lingers emanates from the ill-defined ruling: "the *halachah* is according to Rav Ashi." Void of key legal terms, such as מותר (permitted), or פטור (exempt), variant interpretations were bound to arise.

Sefer haTurim:

To elucidate the residual ambiguity and reconcile the potential variant interpretations that may abound, Asher ben Yechiel's son, Jacob ben Asher (Ba'al haTurim, 1270-1343 C.E.) wrote *Sefer haTurim*, ensuring a measure of uniformity for the Jewish community.⁶¹ In his attempt to provide an all inclusive yet manageable system of law, Jacob ben Asher did not follow the structure of the Talmud, nor did he adopt an arbitrary pattern of organization. Instead, *Sefer haTurim* is organized according to subject matter. The prohibition on tattooing is thus entangled with the halachic concerns over "cutting" and "shaving" as all three come under the inclusive category of "Laws against Idolatrous

60. According to the *Nimukei Yosef*, the 14th century C.E. commentary on Alfasi's *Sefer haHalachot*, the reason the *halachah* is according to Rav Ashi is because, "he is the last authority mentioned [in the Talmudic discussion]," fulfilling the rabbinic principle of *hilcheta ke-vatra-ei* (i.e., the law is in accordance with the views of the later authorities). This may have very well been the basis for Rabbenu Asher's conclusion. I am simply arguing that it is just as likely that Rabbenu Asher derived his opinion from the precedents set in the previous sources, rather than simply falling back on this rabbinic legal principle.

61. As Jacob ben Asher acknowledged, "Legal analysis has deteriorated, opinions have proliferated, and conflicts of authority abound. There is no longer any clear and undisputed law, so that many wonder about to seek the work of the LORD but cannot find it. Therefore, my ideas and thoughts stirred me to consider the statements...and understand the books and their words of their authors...and I determined to compose a work on the subject of religious law and all other matter needed at this time." [Elon, *Jewish Law*, p. 1280 – citation is a translation of Ba'al haTurim's introduction to Yoreh De'ah.]

Practices.” Presented below is an excerpt from this category, pertaining to the material on tattooing only.⁶² It is found in *Yoreh De’ah, Hilchot Ketovet Ka’aka* 180.

כתובת קעקע מחוקי העובדי כוכבים הוא. והוא שכתוב על בשרו בשריטה וממלא מקום השריטה כחול או דיו או שאר צבועונים הרושמין ובכל מקום שעשה כן על בשרו חייב בכל מה שיכתוב אפי' אינו כותב שם כו"ם. ואם עושה כן על בשר חברו אותו שנעשה לו פטור אא"כ סייע בדבר. ומותר ליתן אפר כירה ע"ג מכתו ואין בו משום כתובת קעקע.

Ketovet ka'aka is a topic from the laws [against] the rituals of the idolaters. He who writes upon his flesh with a laceration and fills the place of the laceration with blue dye, or [black] ink, or whatever color leaves a mark is culpable for every place that he makes such [a mark] upon his flesh, no matter what he writes, even if it is not the name of idolatry. If he makes such a mark on the flesh of his fellow, the same fellow that had the mark made upon him is exempt [from culpability] unless he assisted in [making] the thing. It is permitted to place hot ashes upon a wound, for it is not [included among] the laws [against] the rituals of idolaters, as is *ketovet ka'aka*.

Jacob ben Asher concisely articulated the rabbinic borders on the Jewish engagement with tattooing. First, maintaining the continuity of the received tradition, ben Asher considered tattooing an act of idolatry as he included the prohibition within the “Laws against Idolatrous Practices.” Yet, he wrote, for each place one marks the mark of a *ketovet ka'aka*, “no matter what is written, whether it is the name of idolatry or not, he is culpable.” Jacob ben Asher’s statement is surprising. On the surface, it seems to extend the parameters of the prohibition to encompass all marks irrespective of purpose. This position would be contrary to the received tradition which – as demonstrated in the

62. For the entire section and a translation please see the addendum to the thesis. Included there is a full text and translation of all the major rabbinic texts mentioned in this chapter.

previous sections and acknowledged by ben Asher – ascribed culpability to purpose.⁶³ It is therefore more plausible, in view of the wider halachic perspective, that the Ba'al haTurim's words are not intended to revert back to the *tanna kamma's* statement in the *Mishnah*, which generally prohibited any mark. Instead, ben Asher's statement may have been intended as a warning to other rabbinic authorities not to take Rav Ashi's position from BT Makkot 21a literally, aligning culpability to content. As we recall, Rav Ashi stated, "One is not culpable until he writes the name of idolatry."⁶⁴ To which, ben Asher responds, "whether it is the name of idolatry or not," culpability is determined by a mark made for the purpose of idolatry.⁶⁵

Upon this point, Jacob ben Asher is able to clarify another ambiguous teaching of Rav Ashi. Recognizing that his father's conclusion regarding placing ashes on a wound was too vague to properly guide the Jewish community, Jacob ben Asher states explicitly, "It

63. The only explicit exception to this general statement is in RaSHI's commentary on BT *Makkot* 21a. He wrote, "The essence of the transgression is because of the name of [a pagan deity for] idol worship. However, it is forbidden to write [on the flesh] any writing at all, even according to Rabbi Shimon. Rather for him (Rabbi Shimon) it is that culpability (i.e. punishment) does not apply [for all writing, just the tattoo of the name.]" Although the majority of the authorities will disagree, RaSHI's position is maintained as a minority opinion. Similarly, it may be argued that Jacob ben Asher is either disagreeing with the majority of the received tradition and/or siding with RaSHI and the minority opinion. However, this does not appear to be the motive of Jacob ben Asher when writing *Sefer haTurim*. As ben Asher wrote, "I decided to write a book of laws after the fashion of *Piskei ha-Rosh*, by my father, of blessed memory, which are based on the foundation laid by the great Rabbi Isaac Alfasi...so that the reader may quickly find and act in accordance with what is to be found there, not deviating from it to the right or the left," [Introduction to Tur Choshet Mishpat]. He further states, "I do not intend to include protracted proofs, but to set down the law as it has been authoritatively declared; when there are differing opinions, I will set them forth and then state my father's conclusion," [Introduction to Tur Yoreh De'ah]. According to Menachem Elon, "This is not just an expression of filial piety, but an expression of the principle of *hilkheta ka'vatra'ei*." Meaning that Jacob ben Asher was not intent on creating new law, but desired to write a collection of laws in accordance with the established majority view of the previous authorities. [Elon, *Jewish Law*, p.1284]

64. BT *Gittin* 20b

65. His position certainly gives weight to *Sefer haChimuch's* teaching: "even one letter." It was argued that "even one letter" implied that punishment would not occur until the mark articulated meaning, particularly of idolatry, whether pictorial or scriptural.

is *permitted* to place hot ashes upon a wound.”⁶⁶ What is laid out by ben Asher’s statement is not an exemption. It is an outright allowance. Not of a *ketovet ka’aka*, lest one erroneously think so. Rather, what is permitted is a different corporal mark, which is similar to a *ketovet ka’aka*, but made by different means. Sure, an indelible material (i.e. ash) is placed into a laceration (i.e. a wound). But, unlike a *ketovet ka’aka*, the laceration was not intentionally made and unlike a *ketovet ka’aka* the material was not inserted for the purposes of idolatry. Therefore, the corporal mark of healing does not fit the definition of a tattoo as defined by a majority of the sages in Jewish tradition. For this reason Jacob ben Asher wrote, such a mark “is not [included among] the laws [against] the rituals of idolaters, as is *ketovet ka’aka*.”

Yet, this outright permittance begs the question: Are all corporal marks not intended for idolatry permitted? Or, was this merely an exception to the general rule, exclusively for the purposes of healing?⁶⁷ Without a fuller discussion on this matter presented by Ba’al haTurim, it is hard to say. Later on in the section of “Laws against Idolatrous Practices,” Jacob ben Asher writes:

“He who lacerates his flesh is not culpable unless he will make such [a mark] on account of his dead or for the sake of idolatry... The laceration made on account of another sorrow that came to him was exempt [from culpability].”

66. Directly, Jacob ben Asher is clarifying the writing of his father. Yet, it was demonstrated in this chapter that other rabbinic authorities were also vague or completely silent in this matter, including the eminent codifier RaMBaM.

67. Surely, health considerations have always received due attention in the rabbinic discourse. Leviticus 18:5 states, “You shall keep My laws and My rules. By doing them a person may live: I am the LORD.” Rabbinic tradition has understood this mandate as “we shall live by them, [implying] we should not die on their account.” [BT, *Yoma* 85b and BT, *Sanhedrin* 74a] Thus, life takes precedent over the fulfillment of the commandments.

Although this particular statement is not referring specifically to the act of *ketovet ka'aka*, it can be used in a limited way to surmise that one is culpable only when one's purpose is clearly perceptible to the legal rabbinic authorities as idolatrous. It can further be postulated from the writing in *Sefer haTurim* that if one's purpose in making a mark was not idolatrous (i.e. it was "made on account of another sorrow that came to him"), then one is at the very least exempt from punishment. Such an exemption involving a *ketovet ka'aka* will be present by Joseph Caro momentarily. Yet, up to and including *Sefer haTurim* no definitive exemptions regarding alternative uses of the tattoo have been offered.⁶⁸

Shulchan Aruch:

To bring Jacob ben Asher's teachings to light, Joseph Caro (1488-1575 C.E.) wrote a large commentary on *Sefer haTurim* called the *Beit Yosef* ("The House of Joseph"). He later condensed the commentary into an organized table of laws, which he poignantly termed the *Shulchan Aruch* ("The Set Table"). The laws regarding tattooing, which will include the first authoritative exemptions of culpability, are found in *Yoreh De'ah* 180. In total, the category includes 12 clauses, but only the first four pertain to the discussion on tattooing.⁶⁹ Joseph Caro wrote:

68. Although the *Tosefta* influenced later rabbinic authorities, by itself it is not considered authoritative. Therefore, even though it mentioned the first exemption, tattooing a slave so that he will not flee, it does not become an authoritative ruling until Joseph Caro states it in the *Beit Yosef*. Additionally, tractate *Gittin* presented a case of tattooing a *get* upon the hand of the slave. But, since *Gittin* focused on the validity of a *get* and not the prohibition of the tattoo, it is difficult to elucidate what, if any, would be the repercussions regarding the act of tattooing a *get*.

69. Similar to *Sefer haTurim*, the *Shulchan Aruch* includes within the same category of *ketovet ka'aka* laws pertaining to "lacerating" and "shaving." For a translation of the entire section, please refer to the appendix of the thesis, where one may find a copy of all the rabbinic material referenced in this chapter.

א. כתובת קעקע, היינו ששורט על בשרו וממלא מקום השריטה בחול או דיו או שאר צבעונים הרושמים.⁷⁰

ב. אם עושה כן על בשר חבירו, אותו שנעשה לו פטור, אא"כ סייע בדבר.

ג. מותר ליתן אפר מקלה על מכתו.

ד. הרושם על עבדו שלא יברח, פטור. (ונראה דלכתחלה מיהא אסור) (ד"ע)

1. *Ketovet ka'aka* [means] that one lacerates his flesh and fills the place of the laceration with blue dye or [black] ink or whatever color leaves a mark.
2. If he makes such [a mark] on the flesh of his fellow, the same [fellow] that had the mark made upon him is exempt [from culpability] unless he assisted in [making] the thing.
3. It is permitted to place ashes upon a wound to heal it.
4. He who marks his slave, so that he will not flee, is exempt [from culpability]. (In principle, it is forbidden.)⁷¹ (These are his [Moshe Isserles'] own words).⁷²

Joseph Caro confirms the basic definition of *ketovet ka'aka* codified in the centuries of work created by previous rabbinic authorities from the *Mishnah* to *Sefer haTurim*. Summarized by Caro, the prohibition of *ketovet ka'aka* forbade the act of incising and writing (i.e. filling the place of an incision with colored material) as to leave a mark. Yet, Caro affirms in clause two, one is not punished for the *presence* of the mark or for that matter the *content* of the mark. No. Culpability was contingent upon, according to Caro's

70. In the commentary by the GeRA on the *Shulchan Aruch*, he writes, "It [i.e. בחול] should say בחול."

71. "In principle it is forbidden," was an addition by Moshe Isserles (d.1572). It meant that the action is not prohibited explicitly by the Torah, nevertheless, it ought not be committed. "Greatly impressed with Caro's work, Isserles nevertheless saw it would fail among Ashkenazi Jews of Eastern Europe unless it included and granted legitimacy to their own distinctive customs." He therefore wrote the Mapah, "Table Cloth," for Caro's "Set Table," including the Ashkenazi customs with the Sephardic ones articulated by Caro. [Barry Holtz. *Back to the Sources: Reading the Classic Jewish Texts*. (New York: Summit Books, 1984) p. 162]

72. This appears to be a later addition, implying that Isserles is the author of the previous addition of "in principle it is forbidden."

interpretation of the previous sources, *intent*: deliberately making the mark or willfully conspiring in its application.

Even so, punishment can be executed only when it is determined that one's intentional act was motivated for an idolatrous *purpose*. How is this known when it is not stated explicitly by Caro? First, this understanding is implied in Caro's confirmation of Jacob ben Asher's ruling: "It is permitted to place ashes upon a wound to heal it." As interpreted by the leading commentary on the *Shulchan Aruch*, the *Siftei Cohen*, Caro agreed with ben Asher because "he is not making [a mark] for the purpose of idolatry, rather for the [purpose of] healing a wound."⁷³ Therefore, the allowance of clause three is clearly reliant upon purpose. Furthermore, it is evident that Caro hangs culpability on purpose because he cracked the door of Jewish tradition a little wider to allow the first authoritative exemption to enter the halachic discourse. Solidifying the *Tosefta* position, Caro writes, "He who marks his slave so that he will not flee is exempt."⁷⁴ Although it had largely been ignored by previous rabbinic authorities, Caro recognized that the act of corporal marking a slave was germane to the discussion of tattoos from the time of the *Tosefta* onward.

Yet, restrained by the chain of tradition, Caro could not outright permit such a mark, as Jacob ben Asher did for the mark of healing. The reason is twofold. First, the slave mark is made with two intentional acts – incising and writing – transgressing the basic

73. The *Siftei Cohen*, otherwise known as "*Shach*," was written by Shabbetai b. Meir ha-Cohen (1621-1662). [Elon, *Jewish Law*, pp. 1425-1426]

74. The *Tosefta* states, "He who makes a mark on his slave, so that he will not run away, is exempt," [*Makkot* 4:15]. In addition, BT *Gittin* 19b-20b discussed tattooing a *get* on the hand of a slave.

definition of *ketovet ka'aka* presented in clause one.⁷⁵ Second, a close association between slavery and idolatry had already been established by rabbinic authority.⁷⁶ Caro, therefore, walked a very thin line between permission and prohibition as he exempted the individual who makes the corporal mark on slaves from punishment. His successful balancing act was achieved through the stipulation, “so that he will not flee.” These words clearly indicate the purpose of the slave mark. It was not made for idolatry. Rather, it was used for either proprietary or punitive reasons.⁷⁷ A similar approach, which gave due consideration to purpose, would emerge as the majority opinion in rabbinic authority as the sages adjudicated culpability under the prohibition of *ketovet ka'aka*.

However, “in principle it is forbidden,” preserves a faint echo of the minority opinion which did not give consideration to the issue of purpose. Those sages which held to the minority opinion desired to prohibit the presence of all marks as long as they were made through the intentional act of writing and incising. Considering this minority opinion, *Pitchai Teshuvah* comments, “Here it [i.e. the statement - ‘in principle it is forbidden’] deals with [a slave, who is] circumcised and ritually cleansed [i.e. he has entered the Jewish community]. But a slave, acquired by an Israelite, who is not circumcised and cleansed [i.e. he has not entered the Jewish community] is permitted to be tattooed, as it is permitted to lacerate the flesh among the Canaanites.”⁷⁸ In this interpretation, the minority opinion was applicable only for slaves who had “converted,” i.e. had been circumcised and ritually cleansed, into the Israelite society. The minority opinion,

75. Unlike the mark of healing which was made unintentionally both in the act of incision and writing, the slave mark is made through two intentional acts - writing and incising.

76. See Maimonides' *Mishneh Torah*, Laws of Against Idol Worship 12:11

77. As presented in the previous chapter to this thesis, very similar tattoos were used on slaves to designate ownership or to provide a measure of insurance for precarious property.

78. This is a later commentary, written by Abraham Tzvi Hirsch Eisenstadt (1813-1868). [Elon, *Jewish Law*, p. 1441]

however, did not necessarily apply to those that maintained their original ethnic identity, as it appears that tattooing was not considered aversive to their cultural practices.

Conclusion:

With each subsequent generation, from the *Mishnah* and *Tosefta* in 200 C.E. to the *Shulchan Aruch* in the 16th century, the ambiguous picture of corporal marks presented in the Biblical text was brought into greater and greater focus. The tool that helped refine the picture of the Jewish engagement with tattooing during the classic rabbinic period was the *halachah*, according to which, the Biblical prohibition of *ketovet ka'aka* forbade an act of incising and writing as to leave a mark on any place of the body, whether generally exposed or not.

Furthermore, the classic rabbinic authorities determined that one cannot be punished simply for bearing the corporal mark of a tattoo. Rather, culpability is contingent upon a deliberate act of making a mark or conspiring in its application. While this position will remain the minority opinion, which forbade all marks made deliberately, most rabbinic authorities agreed that the deliberate act must result in a mark that has meaning, whether graphic or scriptural in nature. The reason it must have meaning is because the mark is a critical piece of evidence in the case of culpability. By the majority opinion, the mark must speak unequivocally to the act of idolatry in order to be punished.

If there is any degree of ambiguity in this matter, the legal grounds have been established to either (1) permit a mark when the act is not considered deliberate, therefore a purpose cannot be presumed, as was the case with ashes on a wound. Or, (2) one may be exempt from punishment when the purpose of the mark was not idolatrous, even though the act

was deliberate, as was the case of tattooing a slave. It is uncertain whether this latter exemption opens the door for other tattoos that are similarly made intentionally, but not for the purposes of idolatry to be exempt as well.

The details of the prohibition, as presented throughout the various codes of this chapter, were of great interest to the rabbinic authorities of the classic rabbinic period. Hoping that by cropping down the large-scale rabbinic discourse into a finely focused set of rules, rather than principle, the Jewish community would be able to successfully engage in the real-world issue of tattooing. These rules were not just intended to help the Jewish community of the classic rabbinic period. They were intended to be an eternal guide to all Jews. As it was stated, the prohibition “is in effect everywhere, at all times.”⁷⁹ Nevertheless, as it will be explored in the following chapter, these finely articulated rules of law may have limits, as modern *poskim* revert to principle, in part, to address tattoos and the act of tattooing amongst Jews in the modern era.

79. *Sefer HaChinuch*, Mitzvah 253.